

otherwise subject to judicial notice must be relevant to an issue in the action.”].)

Background

Until December 2023, the City used an at-large method of election for its City Council. (Pet’n and Answer at ¶ 10.) On 6/16/23, Petitioner sent a certified letter to the city clerk requesting the elimination of the at-large system, asserting it was racially discriminatory. (Jackson Decl., Exh. 2.)

Pursuant to Elections Code section 10010(e)(3), the City had 45 days from receipt of Petitioner’s letter in which to announce its intention to transition from an at-large method of election to a district-based system. During this “safe harbor” period, Petitioner could not bring an action on behalf of any prospective plaintiff under the California Voting Rights Act (CVRA). (Pet’n and Answer at ¶ 15.) The City availed itself of the safe harbor provision and adopted a resolution declaring its intention to transition from at-large to by-district elections. (Jackson Decl., Exh. 3.) On 1/16/24, the City adopted a resolution changing its at-large system to a by-district election system. (Pet’n and Answer at ¶ 19.)

Subsequently, on 1/24/24, Petitioner submitted a request for payment of attorney’s fees and demographer costs under Elections Code section 10010. (Egger Decl., ¶ 4 and Exh. C.) Petitioner requested a total of \$37,894.98, as limited by the statutory cap.

The City responded by letter dated 2/23/24 under Elections Code section 10010(f), which authorizes a City to request additional substantiation to corroborate the claimed costs. (Egger Decl., ¶ 5 and Exh. D.) The City requested additional documentation for a variety of reasons, including that the 1/24/24 letter did not identify the prospective plaintiff or provide evidence or a statement of the prospective plaintiff’s characteristics in order to evidence standing for purposes of Section 10010. The parties continued to communicate, but Petitioner did not provide the prospective plaintiff information or all of the information requested regarding the alleged demographer. Petitioner filed this petition on 5/28/24.

After filing this matter, the City sought information regarding Petitioner’s standing and demographer through discovery. (Egger Decl., ¶ 7 and Exh. F.) Petition moved for a protective order to protect the prospective plaintiff’s identity and characteristics based on alleged retaliation concerns. (Egger Decl., ¶ 8.) After the parties participated in an Informal Discovery Conference, Petitioner withdrew the motion and then produced documents identifying the individual’s identity, class membership, voter registration, and city residency. (Ibid.) The next month, the City paid Petitioner \$28,986.75 for her attorney’s fees. (Letourneau Dec., ¶¶ 4-5; Egger Decl., ¶ 11.)

The City obtained information about the demography expenses and deposed the alleged demographer. (Egger Decl., ¶ 12.) The City and Petitioner agreed to pay \$4,500 as full and final payment for the demographer expenses. (Egger Decl., Exh. K.)

Attorney’s Fees and the Safe Harbor Cap

Petitioner argues that she is not limited by the safe harbor cap of Section 10010(f) because the City did not abide the safe harbor requirements. Petitioner does not show however that the City did not abide by the safe harbor requirements.

Under the “safe harbor” provision of section 10010(e)(3)(A)–(B), the City had 45 days to agree that it would change from at-large to district-based elections. During this period, no prospective plaintiff could bring a lawsuit under the CVRA. Petitioner here evidently delivered her letter requesting the elimination of the at-large election system on 6/16/23. (Jackson Decl., Exh. 2.) Petitioner claims the letter was sent by certified mail, but the letter itself states, “VIA HAND DELIVERY.” (Ibid.) At any rate, the City adopted the resolution declaring its intent to transition to district elections on 7/26/23 – i.e., 40 days after 6/16/23. (Jackson Decl., Exh. 3.) Thus, it appears that the City acted timely to avail itself of the safe harbor provision.